

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RAUL GARCIA,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER
JIMMY PEREZ, SHIELD NO. 00527,
SGT. JORDAN CASTRO, SHIELD NO. 03544,
POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046
and POLICE OFFICER DANIEL STAPLE,
SHIELD NO. 14749,

Defendant(s).

To the above named Defendant(s)

Index No.
Date Filed:
Plaintiff(s) designates
BRONX County as
the place of trial

The basis of venue is
Situs of occurrence

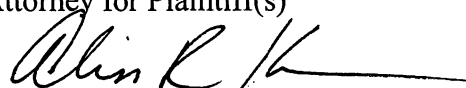
SUMMONS

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the Verified Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

Dated: New York, New York

June 1, 2017

BURNS & HARRIS
Attorney for Plaintiff(s)



ALISON R. KEENAN
233 Broadway – Suite 900
New York, New York 10279
(212) 393-1000

Defendants' addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

POLICE OFFICER DANIEL STAPLE, Shield No. 14749
NYPD PSA 7
737 Melrose Avenue
Bronx, New York 10451

SERGEANT JORDAN CASTRO, Shield No. 03544
NYPD PSA 7
737 Melrose Avenue
Bronx, New York 10451

POLICE OFFICER JIMMY PEREZ, Shield No. 00527
NYPD PSA 7
737 Melrose Avenue
Bronx, New York 10451

POLICE OFFICER ZAIN WOODS, Shield No. 30046
NYPD Critical Response Command
5 Central Road
Randalls Island, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RAUL GARCIA,

Index No.

Plaintiff(s),

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT , POLICE OFFICER
JIMMY PEREZ, SHIELD NO. 00527,
SGT. JORDAN CASTRO, SHIELD NO. 03544,
POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046
and POLICE OFFICER DANIEL STAPLE,
SHIELD NO. 14749,

Defendant(s),

-----X
Plaintiff, complaining of the defendants by his attorney upon information and belief,
respectfully allege(s):

AS AND FOR A FIRST CAUSE OF ACTION IN BEHALF OF PLAINTIFF

RAUL GARCIA

1. That at all times herein mentioned the defendant THE CITY OF NEW YORK,
hereinafter referred to as "CITY", was and still is a municipal corporation, duly organized and
existing under and by virtue of the laws of the State of New York.

2. That at all times herein mentioned the defendant NEW YORK CITY POLICE
DEPARTMENT, hereinafter referred to as "NYCPD", was and still is a public benefit corporation,
duly organized and existing under and by virtue of the laws of the State of New York.

3. That at all times herein mentioned, the defendants POLICE OFFICER

JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749, were and still are police officers employed by the defendant CITY and NYCPD.

4. That at all times hereinafter mentioned, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 -- are sued in their individual capacities.

5. That at all times hereinafter mentioned, defendants, either personally or through their employees, were acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. That notice of plaintiff's claim and notice of intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained was duly filed by the plaintiffs with the Corporation Counsel of the defendant CITY and with the Comptroller of the defendant CITY and with the Legal Department of the defendant NYCPD within 90 days after the cause of action herein accrued.

7. That pursuant to notice given by the defendants a hearing was held in abeyance pending the criminal charges being resolved.

8. That more than 30 days have elapsed since the demand for claim upon which this action was founded was presented to the Comptroller Legal Department of the defendants CITY and the Legal Department of the defendant NYCPD, for adjustment and that he has neglected and refused to make adjustment or payment thereof for said period of 30 days after such presentation, and that

this action is commenced within one year after the cause of action accrued.

9. That on or about 6/3/2014, defendants did verbally and physically abuse plaintiff and did commit an assault and battery upon plaintiff, causing severe personal injuries, and serious bodily harm.

10. That on or about 6/3/2014, defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046, and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 did handcuff, falsely arrest, falsely charge, unlawfully detained and maliciously prosecuted plaintiff with the penal law violation of felony, assault and violations of the vehicle and traffic law.

11. That all charges against plaintiff arising out of the aforementioned incident have now been dismissed by the Court.

12. That the aforesaid acts of the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were willful, intentional and unwarranted and without any just cause or provocation.

13. That at all times hereinafter mentioned, and specifically on 6/3/2014, defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were on duty as police officers for defendants CITY and NYCPD.

14. That at all times hereinafter mentioned, and specifically 6/3/2014, defendants

POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were in uniform as police officers for defendants CITY and NYCPD.

15. That at all times hereinafter mentioned, and specifically 6/3/2014, defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were acting within the scope of their employment as police officers for defendants CITY and NYCPD.

16. That the defendants CITY, NYCPD and defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749, their agents, servants and/ or employees were negligent in performing their duties; in failing to protect plaintiff from actual and imminent harm, in hiring and/ or retaining in its employ personnel who are violent and/ or possess violent propensities, persons, who would assault and commit battery on law abiding individuals, law enforcement personnel who make an arrest without reasonable cause; in failing to adequately train and supervise its personnel; in causing, allowing and/ or permitting unwarranted use of force against claimant; and in causing, allowing, or permitting its personnel to improperly effectuate arrest, all in violation of statutes, ordinances and regulations.

17. That at all times herein mentioned, the actions of the defendants were negligent and not in accordance with proper police procedures and regulations.

18. That said occurrence and the resulting personal injuries to the said plaintiff were caused

through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

19. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
IN BEHALF OF PLAINTIFF RAUL GARCIA

20. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

21. That on or about 6/3/2014, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046, and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 did verbally, physically, intentionally, maliciously and deliberately abuse the plaintiff, with neither provocation nor privilege, and did commit an assault and battery upon plaintiff, causing severe personal injuries and serious and permanent bodily harm to the plaintiff.

22. That at the time of such malicious prosecution, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544,

POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were employees of the defendants and were acting as the defendants' agents in doing the acts complained of herein and were acting within the scope of their authority and while they were acting or attempting to be acting in the defendants' interest.

AS AND FOR A THIRD CAUSE OF ACTION
IN BEHALF OF PLAINTIFF RAUL GARCIA

23. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

24. That on or about June 3, 2014, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046, and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were negligent in causing and allowing and/ or permitting their bodies or parts thereof to come in contact with the person of the plaintiff in such a manner as to cause severe personal injuries and serious and permanent bodily harm to the plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION
IN BEHALF OF PLAINTIFF RAUL GARCIA

25. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

26. That on or about June 3, 2014, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 alleged that they had been criminally and feloniously assaulted by the plaintiff, thereupon without warrant, probable cause or sufficient justification, arresting the plaintiff

on the alleged charges and restraining and booking the plaintiff and depriving the plaintiff RAUL GARCIA of his liberty.

27. That the charges filed by the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were false and unsupported by the facts or the evidence.

28. That the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046, and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 knew that the charges were false and unsupported by the facts or the evidence.

29. That in making this charge and in causing the arrest and detention of the plaintiff RAUL GARCIA, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 acted maliciously and wrongfully and improperly and with intent to injure the plaintiff and with reckless disregard of the safety of the plaintiff.

30. That the charges brought by the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were dismissed by the Court.

31. That at the time of such malicious prosecution, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER

DANIEL STAPLE, SHIELD NO. 14749 were employees of the defendants and were acting as the defendants' agents in doing the acts complained of herein and were acting within the scope of their authority and while they were acting or attempting to be acting in the defendants' interest.

32. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION
IN BEHALF OF PLAINTIFF RAUL GARCIA

33. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

34. That the plaintiff RAUL GARCIA was charged by the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 with felony assault.

35. That this arrest was illegal and without basis in fact or authority of law.

36. That plaintiff RAUL GARCIA was deprived of his liberty for over twenty- four hours, was held in the detention cells of the police station and then held in the detention cells of Central Booking and then held in the detention cells of the Courthouse.

37. As a result of the false arrest and illegal imprisonment which the plaintiff suffered, plaintiff's health was impaired, plaintiff suffered great mental distress, and expenses were incurred to secure his release.

38. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all the lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SIXTH CAUSE OF ACTION
IN BEHALF OF PLAINTIFF RAUL GARCIA

39. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

40. That on or about 6/3/2014, defendants' POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 acts constituted a willful and wanton disregard of the safety and Civil and constitutional rights of the plaintiff.

41. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame

and disabled; has been informed and verily believes, permanently injured; has incurred great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES PREDICATED ON FALSE ARREST AND FALSE
IMPRISONMENT

42. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

43. That on or about 6/3/2014, plaintiff had an assault and battery committed upon him by the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 at the location 785 Courtlandt Avenue, Bronx, New York.

44. That on or about 6/3/2014, at 785 Courtlandt Avenue, Bronx, New York plaintiff was illegally placed in handcuffs and suffered public embarrassment, sustained physical abuse, harassment and illegal confinement by the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749.

45. That on or about 6/3/2014, plaintiff was further harassed and illegally issued summonses by defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS,

SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 at the aforementioned location.

46. That on December 11, 2014, said summonses issued to the plaintiff by the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 were dismissed by the Criminal court of the City of New York.

47. That as a result of the harassment and illegal confinement which the plaintiff suffered, plaintiff's legal and constitutional rights were violated, plaintiff's health was impaired, plaintiff suffered great mental distress, his reputation and character were injured, his earning power impaired, all to plaintiff's damage in the sum of having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, along with fees, costs and expenses.

48. That as a result of the aforementioned described actions, including the use of excessive physical force and negligent infliction of emotional harm upon the plaintiff, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046, and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 deprived plaintiff of the *rights and privileges and immunities* secured by the constitution and laws of the United States and Fourteenth Amendment.

49. As a result of the aforescribed actions, these defendants individually deprived plaintiff of the *right to be free from unreasonable seizures* secured by the Constitution and laws of the United States and Fourteenth Amendment.

50. As a result of the aforescribed actions, the defendants individually deprived plaintiff of his *right to liberty without due process* of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

51. As a result of the aforescribed actions, the defendants individually deprived plaintiff of his *Equal Protection* under the law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

52. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. 1981, 1983, 1985, and 1986.

53. That it was necessary for plaintiff to hire an attorney to file this lawsuit and upon judgment, plaintiff is entitled to an award of attorney's fees under 42 U.S.C. § 1988(b).

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF RAUL GARCIA

54. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

55. On 6/3/2014, plaintiff suffered severe injuries and trauma to head, neck, Back, wrists, body limbs, emotional distress, physical, psychological and emotional disturbances when the defendants, POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046, and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 attacked plaintiff, threw him to the ground without provocation at the location 785 Courtlandt Avenue, Bronx, New York.

56. Defendants used unreasonable, and unnecessary and excessive force while arresting

and detaining plaintiff.

57. That as a result of the aforescribed actions, including the use of excessive physical force and negligent infliction of emotional harm upon the plaintiff, the defendants POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, SGT. JORDAN CASTRO, SHIELD NO. 03544, POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046 and POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749 deprived plaintiff of the *rights, privileges and immunities* secured by the constitution and laws of the United States and Fourteenth Amendment.

58. As a result of the aforescribed actions, these defendants individually deprived plaintiff of his *right to be free from unreasonable seizures* secured by the constitution and laws of the United States and the Fourth and Fourteenth Amendments.

59. As a result of the aforescribed actions, these defendants individually deprived plaintiff of his *right to liberty without due process* of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

60. The amount and type of the physical force used upon plaintiff by defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances.

61. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. 1981, 1983, 1985, and 1986.

62. The aforementioned acts of the defendants were intentional, willful malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being.

63. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation

embarrassment, disgrace and deprivation of plaintiff's constitutional rights.

64. That it was necessary for plaintiff to hire an attorney to file this lawsuit and upon judgment, plaintiff is entitled to an award of attorney's fees under 42 U.S.C. § 1988(b).

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF RAUL GARCIA FOR EXCESSIVE FORCE UNDER 42 U.S.C. § 1983 (Against Individually Named Defendants)

65. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

66. On June 3, 2014, in the vicinity of 785 Courtlandt Avenue, Bronx, New York, POLICE OFFICER DANIEL STAPLE, SHIELD NO. 14749, acting under color of state law, used excessive physical force against plaintiff, including the use of a chokehold.

67. On June 3, 2014, in the vicinity of 785 Courtlandt Avenue, Bronx, New York, SGT. JORDAN CASTRO, SHIELD NO. 03544, acting under color of state law, used excessive physical force against plaintiff by striking plaintiff multiple times.

68. On June 3, 2014, in the vicinity of 785 Courtlandt Avenue, Bronx, New York POLICE OFFICER ZAIN WOODS, SHIELD NO. 30046, acting under color of state law, used excessive physical force against plaintiff by, inter alia, hitting him in the head with an object.

69. On June 3, 2014, in the vicinity of 785 Courtlandt Avenue, Bronx, New York, POLICE OFFICER JIMMY PEREZ, SHIELD NO. 00527, acting under color of state law, used excessive physical force against plaintiff by, inter alia, kicking plaintiff in the head and knocking him unconscious.

70. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff's constitutional rights under the Fourth Amendment to the United States Constitution.

71. The aforementioned use of force caused immediate injury to the plaintiff in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace and deprivation of plaintiff's constitutional rights.

72. That it was necessary for plaintiff to hire an attorney to file this lawsuit and upon judgment, plaintiff is entitled to an award of attorney's fees under 42 U.S.C. § 1988(b).

WHEREFORE, plaintiff demands judgment against the defendants in the FIRST cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against defendants in the SECOND cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the THIRD cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the FOURTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the FIFTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the SIXTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the SEVENTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court,

plaintiff demands judgment against the defendants in the EIGHTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the NINTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court together with the costs and disbursements of this action.

Dated: New York, NY
June 1, 2017

Yours, etc.,

BURNS & HARRIS
Attorneys for Plaintiff



ALISON R. KEENAN
233 Broadway
New York, New York 10279
(212) 393-1000

STATE OF NEW YORK)
COUNTY OF NEW YORK)

The undersigned, an attorney, admitted to practice in the Courts of the State of New York. The undersigned affirms that the following statements are true under the penalties of perjury.

That deponent is associated with the attorney for the plaintiff in the within action; that deponent has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes it to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff is that plaintiff resides outside of the County where your deponent holds her office.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Information and investigation in the file.

DATE: NEW YORK, NEW YORK

June 1, 2017

A handwritten signature in black ink, appearing to read "Alison R. Keenan", written over a horizontal line.

ALISON R. KEENAN, ESQ.